

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 15-cv-01068-LTB-KLM

SEAN TRUJILLO,

Plaintiff,

v.

WAL-MART STORES, INC.,

Defendant.

FINAL JUDGMENT

This matter was tried on January 9, 2017 through January 12, 2017 before a duly sworn jury of nine, Judge Lewis T. Babcock presiding. The trial proceeded to conclusion and the jury rendered its Special Verdict Form as follows:

WE THE JURY, in the above-captioned action, present our answers to questions submitted by the court to which we have unanimously agreed:

1. Did Plaintiff Sean Trujillo have injuries, damages or losses?

ANSWER: Yes X No

2. Did Defendant Wal-Mart actually know about a danger on the property or, as a person using reasonable care, should have known about it?

ANSWER: Yes No X

3. Did Defendant fail to use reasonable care to protect against the danger on the property?

ANSWER: Yes No X

4. Was Defendant's failure to use reasonable care to protect against the danger on the property a cause of Plaintiff's injuries, damages or losses?

ANSWER: Yes ___ No X

If your answer to any one or more of the above four questions is "NO," then all jurors should stop and sign the verdict form.

On the other hand, if your answer to the above four questions is "YES," then you shall proceed to answer the following questions.

5. Was Plaintiff's negligence, if any, a cause of his own claimed injuries, damages, or losses?

ANSWER: Yes ___ No ___

6. State your answers to the following questions relating to Plaintiff's damages that were caused by Defendant's failure to use reasonable care, whether or not the damages were also caused by the negligence, if any, of Plaintiff:

a. What is the total amount of Plaintiff's damages, if any, for non-economic losses or injuries, excluding any damages for physical impairment or disfigurement? Non-economic losses or injuries are those losses or injuries as described in numbered Paragraph 1 of Jury Instruction No. 18. You should answer "0" if you determine there were none.

ANSWER: \$ _____

b. What is the total amount of Plaintiff's damages, if any, for economic losses, excluding any damages for physical impairment or disfigurement? Economic losses are those losses described in numbered Paragraph 2 of Jury Instruction No. 18. You should answer "0" if you determine there were none.

ANSWER: \$ _____

c. What is the total amount of Plaintiff's damages, if any, for physical impairment or disfigurement? You should answer "0" if you determine there were none.

ANSWER \$ _____

If your answer to all five Questions, 1, 2, 3, 4, and 5 is "YES" then answer the following Question 7:

7. Taking as 100% the combined negligence of Defendant and Plaintiff that

caused the Plaintiff's injuries, damages, and losses, what percentage of the negligence was Defendant's and what percentage was Plaintiff's?

ANSWER: Percentage charged to Defendant Wal-Mart _____%

Percentage charged to Plaintiff Sean Trujillo _____%

MUST TOTAL: 100%

BY OUR SIGNATURES AND OUR ANSWERS TO THESE QUESTIONS, WE
HEREBY CERTIFY THAT THE ANSWERS ON THIS FORM REPRESENT THE
UNANIMOUS VERDICT OF THE JURY.

ACCORDINGLY, IT IS ORDERED that, pursuant to Fed. R. Civ. P. 58(a), final judgment is hereby entered in favor of Defendant Wal-Mart Stores, Inc. and against Plaintiff Sean Trujillo. It is

FURTHER ORDERED that Defendant Wal-Mart Stores, Inc. shall have its costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen days of the entry of judgment, pursuant to Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1. It is

FURTHER ORDERED that Plaintiff's complaint and this civil action are
DISMISSED WITH PREJUDICE.

DATED at Denver, Colorado this 13th day of January, 2017.

FOR THE COURT:

JEFFREY P. COLWELL, CLERK

By: s/Emily Buchanan
Emily Buchanan, Deputy Clerk